FULL TEXT OF MEASURE J

RESOLUTION NO. 098-2026 OF THE BOARD OF SUPERVISORS OF THE COUNTY OF EL DORADO

SETTING FOR MAILED BALLOT ELECTION A MEASURE TO IMPOSE A SPECIAL TAX FOR THE PURPOSE OF PROVIDING ROAD IMPROVEMENT AND MAINTENANCE SERVICES FOR THE WALNUT DRIVE ROAD ZONE OF BENEFIT #98124 WITHIN COUNTY SERVICE AREA #9

WHEREAS, the Board of Supervisors of the County of El Dorado formed County Service Area (CSA) No. 9 pursuant to Title 3, Division 2, Part 2, Chapter 2.2 of the California Government Code and established zones of benefit within CSA No. 9; and

WHEREAS, this Board formed the Walnut Drive Road Zone of Benefit No. 98124 on August 6, 1985 by Resolution 212-85 for the purposes of providing road improvements and maintenance services; and

WHEREAS, the extended services provided within CSA No. 9 zones are authorized services pursuant to Government Code section 25213; and

WHEREAS, California Government Code section 25215.2, together with section 25217.4, expressly authorizes a zone within a county service area to levy a special tax for road improvement and maintenance services subject to voter approval; and

WHEREAS, pursuant to California State Law, the Board of Supervisors is required to place before the electorate the approval of the measure as shown on Exhibit A before the special tax can be levied, or increased over the amount previously approved by the electorate; and

WHEREAS, the County Registrar of Voters has determined that one hundred sixty-two (162) registered voters reside within the zone of benefit boundaries; and

WHEREAS, such special tax amount increase shall take effect only if approved by a two-thirds majority of the voters casting a ballot in the special tax ballot proceeding; and

WHEREAS, the zone advisory committee has determined an annual special tax amount of $525.00 for each parcel of land, whether it is improved or unimproved regardless of use, is reasonable and sufficient to provide road improvement and maintenance services within the zone of benefit for the fiscal year 2027/2028, and thereafter; and

WHEREAS, if the measure as shown on Exhibit A does not pass, the existing service charge of $325.00 shall remain in effect.

NOW, THEREFORE, BE IT RESOLVED by the Board of Supervisors that:

1. The measure shown on Exhibit A shall be submitted to the voters of the Walnut Drive Road Zone of Benefit 98124 within County Service Area 9.
2. The El Dorado County Registrar of Voters shall submit the measure as shown on Exhibit A to the electorate in a mailed ballot election to be held on November 3, 2026.
3. The tax as shown on Exhibit A, if approved, shall appear as a separate item on the tax bill of each affected parcel and shall be collected at the same time and in the same manner as county ad valorem property taxes are collected as set forth

in the applicable provisions of the Revenue and Taxation Code, and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for such taxes. All laws applicable to the levy, collection, and enforcement of county property taxes shall be applicable to the tax.

4. The special tax is subject to the accountability measures required by State Law, including Government Code sections 50075.1.

5. Notification shall be provided of the special tax increase, if approved, to each non-resident property owner within the zone boundaries, in accordance with the requirements of Government Code section 54930.

6. The special tax amount shown on Exhibit A shall take effect and be imposed only of it is approved by a two-thirds majority of the votes cast on the measure in the election to be conducted on November 3, 2026.

"Shall the measure to levy an annual special tax in an amount of $525.00 on each parcel of land within the Walnut Drive Zone of Benefit commencing fiscal year 2027/2028 and continuing for an unlimited duration, to be used only for road improvements and maintenance and generating an annual revenue of approximately $39,375, to replace the current benefit assessment of $325, be adopted?"

ARGUMENT IN FAVOR OF MEASURE J

Please support this increase in funds to maintain our neighborhood roads. Our neighborhood roads are maintained exclusively through the County Zone of Benefit program with no additional funding. The program is supported by neighbors who volunteer on the Advisory Board, and supplemental volunteer roadwork events.

Current funds are insufficient to properly maintain our neighborhood roads.
The current funds collected -- $325 annually per parcel -- have not increased since 1997, 29 years ago.

Why don't the funds cover the needed maintenance?

1. The cost of materials and labor to maintain our roads has increased substantially over the past 29 years.
2. The initial design of our paved roads did not account for the heavy use and wear and tear we see on our roads today:

- Significant increase in heavy truck traffic, weekly trash truck pick-up, multiple daily UPS, FedEx, & Amazon deliveries.
- Overall significant increase in population and traffic on our zone roads.

The roads in our Zone of Benefit are: Walnut Drive, Valley View Rd., Little Oak Ln., Bainbridge Ave., Walnut Ct., and Acorn Ct.

The condition of our roads is deteriorating at the current funding level. We are working hard to maintain our neighborhood roads and current funding only enables us to address the most critical road repairs each year. We need your support to maintain our roads and prevent major road failures.

Please vote YES on Measure J to increase our Zone of Benefit funds from $325 to $525 per parcel annually.

Terri L. Mangel
Maureen Brennan-Petitt
Eileen McCaffrey

****NO ARGUMENTS AGAINST THIS MEASURE WERE SUBMITTED****

IMPARTIAL ANALYSIS OF MEASURE J

Measure J (the "Measure"), if approved by two-thirds of the voters voting thereon, would authorize the levy of a special tax at the rate of $525 per parcel (whether improved or unimproved) per year within the Walnut Drive Road Zone of Benefit #98124 of County Service Area 9 (the "Zone"). This Measure was placed on the ballot by the Board of Supervisors of the County of El Dorado at the request of the advisory committee for the Zone pursuant to Resolution No. 098-2026, which was passed at an official meeting of the Board of Supervisors on June 16, 2026.

If the Measure is approved, it would authorize the levy of a special tax of $525 per parcel per year, replacing an existing benefit assessment of $325 per parcel per year. The special tax will be used solely for the purpose of road improvements and maintenance services within the Zone. It would become effective in Fiscal Year 2027/2028 and remain in effect until modified or repealed by the voters. The special tax authorized by this Measure is expected to generate annual revenue of approximately $39,375. If the Measure is not approved, the existing benefit assessment of $325 per parcel per year will remain in effect.

State law requires the proceeds from the special tax be applied only to the identified purposes and that an annual report be made indicating the amount of funds collected and expended and the status of any project required or authorized to be funded by the proceeds.

The special tax authorized by this Measure will be listed as a separate item on the county property tax bill for each affected parcel of land and will be collected in the same manner as the general property tax. All laws applicable to the levy, collection, and enforcement of county property taxes, including the provisions for penalties and the procedures for sale of the property in case of delinquency, shall also apply to the special tax.

A "YES" vote is a vote to authorize the levy of an annual special tax in the Walnut Drive Road Zone of Benefit in an amount of $525 per parcel, as provided in the Measure.

A "NO" vote is a vote against the levy of the special tax.

David A. Livingston
El Dorado County
County Counsel